



## Notification Waiver Determination

### OceanaGold - Ausgold

|                              |                                                                                                                                                                                                                                                                                                                             |
|------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Acquisition</b>           | OceanaGold (Australia) Pty Ltd applied for a notification waiver in respect of its proposed acquisition of 100% of the issued share capital in Ausgold Limited ( <b>Ausgold</b> ) through a scheme of arrangement, as described in the transaction documents provided as part of the application (the <b>Acquisition</b> ). |
| <b>Determination</b>         | The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.                                                                                                                      |
| <b>Date of determination</b> | 17 September 2026                                                                                                                                                                                                                                                                                                           |

|                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
|--------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Parties to the Acquisition</b>    | <p>The acquirer, OceanaGold (Australia) Pty Ltd, is a wholly owned Australian subsidiary of OceanaGold Corporation (together, <b>OceanaGold</b>). OceanaGold is a global intermediate gold and copper mining company. Its principal mining operations are located overseas in the United States of America (Haile Gold Mine), New Zealand (Macraes Operation and Waihi Operation) and the Philippines (Didipio Mine). OceanaGold does not hold, operate or have an interest in any gold mining or exploration tenements in Australia. However, it supplies gold that has been produced overseas to customers in Australia.</p> <p>The target, Ausgold, is an ASX-listed development-stage gold mining company. Its principal asset is the Katanning Gold Project, located in Western Australia. As a development-stage company, Ausgold does not currently produce or sell gold.</p>                                                                                                                                     |
| <b>Explanation for determination</b> | <p>In making this notification waiver determination, the Australian Competition and Consumer Commission (the <b>ACCC</b>) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the <b>Act</b>).</p> <p>Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition, given:</p> <ol style="list-style-type: none"><li>there is no current horizontal overlap between OceanaGold and Ausgold in the supply and production of gold in Australia</li><li>the parties' actual and expected combined share in the production and supply of gold in Australia and globally is low and the increase in share of supply arising from the Acquisition is expected to be small</li><li>the presence of alternative producers and suppliers of gold in Australia and globally.</li></ol> |

|  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
|--|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|  | <p>In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met.</p> <p>Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified.</p> <p>The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition.</p> <p>For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's <a href="#">guidance on notification waivers</a> and <a href="#">merger assessment guidelines</a>.</p> |
|--|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)  
of the Act**